

Meera Dubey v. State of U.P. and Others

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 5 January 2024 · 2024:AHC-LKO:1197-DB · WRIT - C No. - 11729 of 2023 · **Fresh clause 4.44 application to be decided expeditiously.**

HEADNOTE

Writ petition complaining that an application for an electricity connection was not being decided. The licensee stated that clause 4.44 of the U.P. Electricity Supply Code, 2005, including payment of the required fee, remained unfulfilled, and that the application would be processed and the connection given on compliance. Statement taken on record. Petitioner permitted to move a fresh application complying with clause 4.44 before the Executive Engineer, who shall decide it forthwith and expeditiously in accordance with law. Petition disposed of.

FACTUAL SUMMARY

Meera Dubey petitioned the Allahabad High Court, Lucknow Bench, because the respondents had not decided her application for an electricity connection. Counsel for Madhyanchal Vidyut Vitran Nigam stated that she had not fulfilled all conditions under clause 4.44 of the U.P. Electricity Supply Code, 2005, including payment of the required fee. The licensee added that, once those conditions were met, the application would be processed and the connection provided. The respondents included the District Magistrate, Lucknow, and the distribution licensee.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005

processing of a connection application on clause 4.44 compliance

HOLDING

On the licensee's statement that the petitioner's application for an electricity connection will be processed and the connection provided once she fulfils all conditions of clause 4.44, including payment of the required fee, she may file a fresh application complying with that clause before the Executive Engineer, Madhyanchal Vidyut Vitran Nigam, who shall decide it forthwith and expeditiously in accordance with law. ¶ 3-6

FLAG Para 3 cites the U.P. Electricity Supply Code, 2005; para 5 cites the same clause 4.44 as the Supply Code, 2006.

PRINCIPLE TAGS

clause-4.44-mutation-application-to-be-processed The Court took on record that the clause 4.44 application would be processed and the connection provided once its conditions, including the required fee, were fulfilled, and directed the Executive Engineer to decide a fresh compliant application forthwith and expeditiously in accordance with law. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD ALREADY COMPLIED WITH CLAUSE 4.44 AND WAS ENTITLED TO RELEASE OF THE CONNECTION

Left to the Executive Engineer on a fresh application, to be decided in accordance with law. ¶ 5-6